Bow Valley College

Course Outline

JUST2201

Correctional Law
Fall 2020 - Fall 2020

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JUST2201 Correctional Law

COURSE DESCRIPTION

This course covers general aspects of Canadian law as it applies to the field of corrections, as well as Acts and Regulations specific to corrections. Expectations of correctional staff in light of the Charter of Rights and Criminal Code are reviewed, together with the application of common case law to corrections. Specific legislation covered in the course includes the Corrections and Conditional Release Act, the Prison and Reformatories Act, Provincial Corrections Act; Freedom of Information and Protection of Privacy (FOIP); and Victim-related legislation. Current legal issues in corrections will be explored.

REQUISITES	None
EQUIVALENTS	None
CREDITS	3
HOURS	45
ELIGIBLE FOR PLAR	No

COURSE LEARNING OUTCOMES

Bow Valley College is committed to ensuring our graduates can demonstrate their abilities in key areas that will make them effective citizens and encourage their development as lifelong learners. In addition to the discipline-specific skills that learners acquire in their programs, the College has identified ten learning outcomes.

College-Wide Outcomes:

1. Communication
2. Thinking Skills
3. Numeracy and Financial Literacy
4. Working with Others
5. Digital Literacy
6. Positive Attitudes and Behaviours
7. Continuous Learning
8. Health and Wellness Awareness
9. Citizenship and Intercultural Competence
10. Environmental Sustainability

#	COURSE LEARNING OUTCOME(S)	COLLEGE WIDE OUTCOMES SUPPORTED
1	Discuss the different types of legislation relevant to corrections.	1, 2
2	Discuss the various case law relevant to corrections.	1, 2
3	Analyze the advantages and disadvantages of community and custodial sentences.	1, 2, 4, 6
4	Identify important historical differences in legislation and approaches related to corrections.	2, 4, 6
5	Align professional experiences with the applicable legislation.	2
6	Identify legal rights of a correctional inmate.	2, 6, 9

COURSE MODULES AND SCHEDULE

**Course schedule subject to change, depending on delivery mode and term of study. For exact dates, please consult the Course Offering Information in Brightspace.*

WEEK/HOURS	MODULES
Week 1	Course overview and introduction to correctional law Module 1: Alberta Correction Act
Week 2	Learning activity #1 Corrections Act R.S.A. 2000, c. C-29 Module 1: Alberta Correction Act Correctional Institution Regulation – Corrections Act R.S.A. 2001
Week 3	Learning activity #2 Corrections Act R.S.A. 2001 Module 2: Provincial Corrections Corrections Act and Correctional Institutional Regulations
Week 4	Module 3 – Federal Corrections and Conditional Release Act Learning activity #3: Corrections and Conditional Release Act, S.C.1992, c.20
Week 5	Module 3 – Federal Corrections and Conditional Release Act – continued Learning activity #4
Week 6	Module 3 – Federal Corrections and Conditional Release Act – continued Learning activity #5 Review
Week 7	Reading week
Week 8	Midterm exam Module 4 – Federal Prisons and Reformatories Act Assignment #1 due
Week 9	Learning activity #6: Prisons and Reformatories Act, R.S.C. 1985, c. P-20 Module 5 – Sentencing Law R. v. Proulx, 2000 SCC 5, [2000] 1 S.C.R. 61 Criminal Code Ss.742.1 and 742.3
Week 10	Module 5 – Sentencing Law R. v. Proulx, 2000 SCC 5, [2000] 1 S.C.R. 61 Criminal Code Ss.742.1 and 742.3 Learning activity #7: R. v. Gladue [1999] 1 S.C.R. 688 – 1999-04-23 Criminal Code S.718.2(e)
Week 11	Module 6: Imprisonment Assignment #2 due Learning activity #8: R. v. M. (C.A.), [1996] 1 S.C.R. 500 CCRA
Week 12	Module 7: Search and Seizure Learning activity #9: . R. v. Collins, [1987] 1 S.C.R. 265 Canadian Charter of Rights and Freedoms Corrections and Conditional Release Act, S.C.1992, c.20
Week 13	Module 8: Privacy Freedom of Information and Protection of Privacy Act, R.S.A 2000, c. F-25 Access to Information Act, R.S.C. 1985, c. A-1 Privacy Act, R.S.C. 1985, c. P-21 Learning activity #10
Week 14	OFF CAMPUS tour or activity to be determined
Week 15	Final exam

ASSESSMENT

COURSE LEARNING OUTCOME(S)	ASSESSMENT	WEIGHT
2, 3, 4, 5	Assignment(s)	35%
1, 2, 3, 4, 5, 6	Exams (minimum of 2)	50%
1, 2, 3, 4, 5, 6	Participation	15%

Important: For details on each assignment and exam, please see the Course Offering Information.

PERFORMANCE STANDARDS

A minimum grade of D is required to pass this course. However, a program may require a higher grade in this course to progress in the program or to meet specific program completion requirements.

Please consult with the program area or contact the program chair for further details. A minimum Grade Point Average of 2.0 is required for graduation.

GRADING SCHEME

Grade	Percentage	Grade Point	Description
A+	95-100	4.0	Exceptional: superior knowledge of subject matter
A	90-94	4.0	Excellent: outstanding knowledge of subject matter
A-	85-89	3.67	
B+	80-84	3.33	
B	75-79	3.0	Very Good: knowledge of subject matter generally mastered
B-	70-74	2.67	
C+	67-69	2.33	
C	64-66	2.0	Satisfactory/Acceptable: knowledge of subject matter adequately mastered
C-	60-63	1.67	
D+	57-59	1.33	
D	50-56	1.0	Minimal Pass
F	Less than 50	0.0	Fail: an unsatisfactory performance

REQUIRED LEARNING RESOURCES

JUST2201 Correctional Law student handbook available at the Bow Valley College Bookstore

Rodrigues, G. (2016). *Pocket criminal code 2017*. Toronto, Canada: Carswell. (or current edition).

Additional learning resources may be found in the Course Offering Information or in Brightspace.

ADDITIONAL INFORMATION

- Criminal Code
- Canadian Charter of Rights and Freedoms
- Access to Information Act, R.S.C. 1985, c. A-1
- Privacy Act, R.S.C. 1985, c. P-21

Additional information may be found in the Course Offering Information or in Brightspace.

ACADEMIC ACCOMMODATIONS

Learners with a disability (learning, physical, and/or mental health) may qualify for academic and exam accommodations. For more information, or to apply for accommodations, learners should make an appointment with Accessibility Services in the Learner Success Services (LSS) Department. Accessibility Services can also assist learners who may be struggling with learning but do not have a formal diagnosis. To make an appointment visit LSS on the first floor of the south campus or call 403-410-1440. It is the learner's responsibility to contact Accessibility Services and request academic accommodations. For more information, please visit our website at http://www.bowvalleycollege.ca/accessibility.

INSTITUTIONAL POLICIES

Bow Valley College is committed to the highest standards of academic integrity and honesty. Learners are urged to become familiar with and uphold the following policies: Academic Honesty (500-1-7), Learner Code of Conduct, Procedures and Guidelines (500-1-1), Learner Appeals (500-1-12), Attendance (500-1-10), Grading (500-1-6), Academic Continuance and Graduation (500-1-5), and Electronic Communications (300-2-13). Audio or video recording of lectures, labs, seminars, or any other teaching and learning environment by learners is allowed only with consent of the instructor as part of an approved accommodation plan. Recorded material is to be used solely for personal study and is not being used or distributed without prior

written consent from the instructor.

Turnitin:

Students may be required to submit their course work to Turnitin, a third-party service provider engaged by BVC. Turnitin identifies plagiarism by checking databases of electronic books and articles, archived webpages, and previously submitted student papers. Students acknowledge that any course work or essays submitted to Turnitin will be included as source documents in the Turnitin.com reference database, where it will be used solely to detect plagiarism. The terms that apply to a student's use of Turnitin are described on Turnitin.com.

Online Exam Proctoring:

Examinations for this course may require proctoring through an online proctoring service. Online proctoring enables online exam taking within a controlled and monitored environment, thereby enhancing academic integrity. Online proctoring may occur through a variety of methods, including but not limited to:

a. live online proctoring where a remote invigilator authenticates identity and observes completion of an exam using specialized software and recordings;
b. automated proctoring where the exam session is recorded and AI (artificial intelligence) analyzed;
c. browser lockdown that limits access to other applications, websites, copying, printing, screen capture and other functions; or
d. a combination of both live/automated proctoring and browser lockdown.

Course instructors will review recordings, analyses, and data obtained through online proctoring for academic integrity infractions. It is the student's responsibility to meet the technical, software, location, and identity verification requirements necessary to enable online proctoring.

Further details of these policies are available in the Academic Calendar and on the Bow Valley College website, bowvalleycollege.ca.

Learners are encouraged to keep a copy of this course outline for future reference.